

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ALEX ALAVA,

Plaintiff,

-against-

CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, BENITO
ORTEGA and MIRIAM GALLEGOS,

Defendants.

Index No.

Date Purchased:

SUMMONS

Plaintiff designates Kings

County as venue of trial.

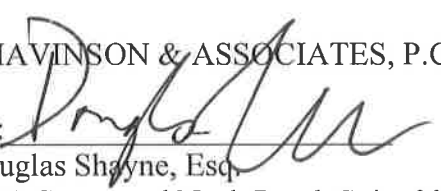
Basis: Location of Occurrence

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' Attorneys within 20 days after service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
November 18, 2014

KHAVINSON & ASSOCIATES, P.C.

By: 

Douglas Shayne, Esq.

1601 Gravesend Neck Road, Suite 903

Brooklyn, New York 11229

Telephone (718) 421-3815

Facsimile (718) 421-3925

To:
THE CITY OF NEW YORK
c/o Office of the Comptroller and Corporation Counsel
1 Centre Street and 100 Church Street, 4th Floor
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, New York 10038

BENITO ORTEGA
259 56th Street, Apt. 2
Brooklyn, New York 11220

MIRIAM GALLEGOS
324 57th Street, 1st Flr
Brooklyn, New York 11220

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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VERIFIED COMPLAINT

Plaintiffs, ALEX ALAVA ("plaintiff") complaining of the defendants by his attorneys
KHAVINSON & ASSOCIATES, P.C., allege upon information and belief as follows:

1. That at all times mentioned herein plaintiff was, and still is, a resident of New York State, Kings County.
2. That at all times mentioned herein, plaintiff was over the age of 18 years old.
3. That at all times herein mentioned defendant THE CITY OF NEW YORK ("City") is and was a domestic not for profit corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. That at all times herein mentioned defendant THE NEW YORK CITY POLICE DEPARTMENT ("Police") was a wholly owned and controlled department of defendant City.
5. That on July 15, 2014 a notice of claim for the subject May 25, 2014 occurrence was served upon defendants City and Police by plaintiff pursuant to General Municipal Law section 50-e.
6. That the notice of claim was timely served upon defendants within 90 days of the underlying occurrence.

7. That a statutory hearing of plaintiff was conducted by municipal defendants City and Police on November 6, 2014 pursuant to General Municipal Law section 50-h.

8. That more than 30 days have elapsed since a notice of claim containing a demand for adjustment was presented to municipal defendants and defendants have neglected or refused to make an adjustment or payment thereof for more than 30 days after presentment.

9. That on May 25, 2014 at or about 2:55 a.m. Calvin Mason was an employee of defendants acting within the scope of his employment.

10. That plaintiff has complied with all the requirements precedent to bringing a law suit against the municipal defendants.

11. That this action is timely having been commenced within one year and 90 days of the underlying occurrence.

AS AND FOR A FIRST CAUSE OF ACTION

12. Plaintiff repeats and re-alleges the allegations set forth in paragraphs 1-11 above.

13. That on May 25, 2014 at or about 2:55 a.m., plaintiff was a restrained passenger in a 2004 Chrysler ("Chrysler") bearing New York license plate number T616853C on 4th Avenue at its intersection with 40th Street, Brooklyn, New York.

14. At the above time and place the Chrysler was operated by defendant Benito Ortega ("operator").

15. Said Chrysler was owned by defendant Miriam Gallegos.

16. At the above time and place stated in paragraph 13, defendant operator was driving the Chrysler with the permission and consent of its owner Miriam Gallegos.

17. At the above time and place stated in paragraph 13, defendant operator was driving the Chrysler within the scope of his employment.

18. That on May 25, 2014 at or about 2:55 a.m., Calvin Mason was a New York City police officer operating a marked police car bearing New York license plate number 424812 within the scope of his employment for the municipal defendants.

19. That Police was the registered owner of said vehicle on May 25, 2014.

20. That on the above date and time police officer Calvin Mason operated said police car with the permission and consent of his employer and registered owner Police.

21. That on May 25, 2014 at or about 2:55 a.m. there was a two vehicle collision involving the vehicles operated by Calvin Mason and owned by the municipal defendants and the 2004 Chrysler operated by defendant Benito Ortega on 4th Avenue at 40th Street, Brooklyn, New York.

22. That the collision occurred when the front of the Police vehicle struck the driver's side of the 2004 Chrysler.

23. That the Police vehicle neither had visible emergency lights nor audible emergency sirens activated at the time of the impact.

24. That Calvin Mason, municipal defendants' employee, failed to use reasonable care under the circumstances in order to avoid the subject collision.

25. That Calvin Mason, municipal defendants' employee, failed to keep a proper lookout and timely observe the struck Chrysler before the collision.

26. That Calvin Mason, municipal defendants' employee, failed to sound the Police car horn before he struck the Chrysler.

27. That Calvin Mason, municipal defendants' employee, ran a red light, thereby causing the collision

28. That Benito Ortega failed to use reasonable care under the circumstances in order to avoid the subject collision.

29. That Benito Ortega failed to keep a proper lookout and timely observe the Police car before the collision.

30. That Benito Ortega failed to sound the Chrysler horn before the collision.

31. That Benito Ortega, ran a red light, thereby causing the collision.

32. That as a result of the collision both involved vehicles sustained vehicular damage and were towed from the occurrence location.

32. That the aforesaid collision described in paragraphs 21-31 above was caused by defendants' negligence solely.

33. That the aforesaid collision described in paragraphs 21-31 above was caused by defendants' recklessness solely.

34. That the defendants violated New York State Vehicle and Traffic Laws, including section 1111 and the Rules of the City of New York thereby solely causing the collision.

34. That plaintiff passenger shares no comparative fault and displayed no want of care for the subject occurrence.

35. That as a proximate result of defendants' negligence and/or recklessness plaintiff was rendered sick, lame, unable to work, experienced extreme pain and suffering, emotional distress, loss of enjoyment of life, and was seriously and permanently injured under New York Insurance Law section 5102 (d).

36. That as a proximate result of defendants' negligence and/or recklessness plaintiff sustained economic damages in excess of basic economic loss under New York Insurance Law section 5104.

37. That as a result of sustaining the foregoing serious and permanent injuries, all of

which were proximately caused by the defendants, plaintiff will require medical care for the rest of his life.

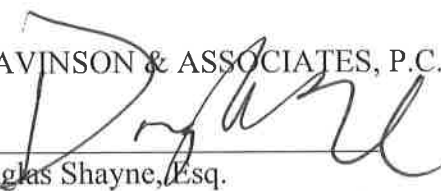
38. That by reason of the foregoing plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

39. That this action falls under one or more of the exceptions of Article 16 of New York's CPLR.

WHEREFORE, plaintiff demand judgment against the defendants individually and collectively in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction together with the costs and disbursements of this action and such other and further relief that this Court deems just and proper.

Dated: Brooklyn, New York
November 18, 2014

KHAVINSON & ASSOCIATES, P.C.

By: 

Douglas Shayne, Esq.

1601 Gravesend Neck Road, Suite 903

Brooklyn, New York 11229

Telephone (718) 421-3815

Facsimile (718) 421-3925

ATTORNEY VERIFICATION

State of NEW YORK }
 } ss.:
County of KINGS }

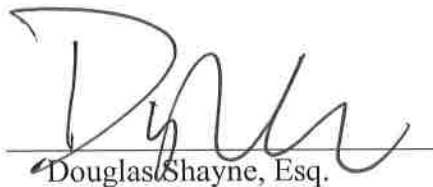
I, the undersigned, an attorney admitted to practice in the courts of the State of New York, state that I am associated with the law firm of KHAVINSON & ASSOCIATES, P.C., the attorneys of record for the plaintiff Alex Alava in the within action. I have read the foregoing

SUMMONS AND VERIFIED COMPLAINT

in the within action and know the contents thereof, the same are true to my knowledge except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. The reason this verification is made by myself and not by the plaintiff is that the plaintiffs is currently unavailable.

The grounds of my belief as to those matters therein not stated upon knowledge is based upon facts, records, and other pertinent information contained in our litigation files.

Dated: Brooklyn, New York
November 18, 2014


Douglas Shayne, Esq.

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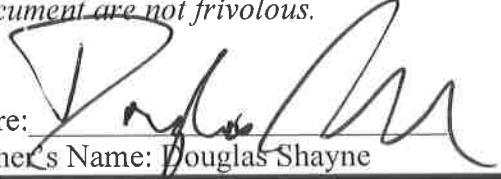
KHAVINSON & ASSOCIATES, P.C.

Attorneys for Plaintiff

1601 GRAVESEND NECK ROAD, SUITE 903
BROOKLYN, NY 11229
(718) 421-3815

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: November 18, 2014

Signature: 

Print Signer's Name: Douglas Shayne

To: THE CITY OF NEW YORK
c/o Office of the Comptroller and Corporation Counsel
1 Centre Street and 100 Church Street, 4th Floor
New York, New York 10007

NYCPD
125 Worth Street,
New York, New York 10013

BENITO ORTEGA
259 56th Street, Apt. 2
Brooklyn, N.Y. 11220

MIRIAM GALLEGOS
324 57th Street, 1st Flr
Brooklyn, N.Y. 11220

Service of a copy of the within
is hereby admitted.

Dated,

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Attorney(s) for